

		participate in discovery, the defense has been, and continues to be, severely prejudiced. “Trial courts are to take an incremental approach to discovery sanctions, <i>starting with monetary sanctions</i> and leading up to the ultimate sanction of termination. Sanctions must be proportionate to the harm caused by the misconduct and should not provide a ‘windfall’ to the party requesting sanctions.” (<i>Atlas v. Davidyan</i> (2025) 113 Cal.App.5th 1086, 1095 [emphasis added] [citations omitted].) “Once a party or witness has been <i>ordered</i> to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].) In its moving papers, Defendant fails to point out which discovery orders Plaintiff has violated. Based on the record, the Court sees no justification for resorting to the ultimate sanction of termination at this juncture. Defendant shall give notice of the ruling.
5	Hoffman v. Ear and Ear 2024-01411742	Motion to Compel Further Responses / Sanctions Defendant Kimberly Ear’s unopposed motion to compel Plaintiff Hartley Hoffman’s further responses to her special interrogatories is granted. A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete, an exercise of the option to produce documents under CCP § 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or an objection to an interrogatory is without merit or too general. (Code Civ. Proc. § 2030.300(a).) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255.) Here, Plaintiff only served objections to Defendant’s interrogatories.

		Defendant's special interrogatories at issue are straightforward and relate directly to Plaintiff's contentions in her complaint. It is Plaintiff's burden to justify her objections, and she has not done so. No opposition was filed. Therefore, the motion is granted. Plaintiff is ordered to serve further responses to Defendant's special interrogatories numbered 46 – 79 within 20 days of service of the notice of this ruling. Defendant is awarded \$1,350.00 in monetary sanctions against Plaintiff and her counsel to be paid within 30 days. (Code Civ. Proc., § 2030.300(d).)
6	Keller v. E & G Aesthetic Institute, Inc. 2025-01534928	Defendants E&G Aesthetic Institute, Inc. and Mariaelena Gavilanes' motion for order compelling plaintiff Christina Keller to arbitrate her claims in this action is granted. [ROA #15.] These proceedings will be stayed pending completion of arbitration. Facts This is essentially an action for medical malpractice. Plaintiff asserts claims on her own behalf and as successor in interest to her decedent. The complaint contains two causes of action: (1) wrongful death based on medical malpractice (CCP 377.60) and (2) medical malpractice through survival action (CCP 377.20). [Complaint (ROA #2).] Prior to obtaining medical care from Defendants, Plaintiff's decedent signed an arbitration agreement with E&G Aesthetic Institute, Inc. [Crespo Decl. (ROA #15), ¶ 3 and Ex. 2; Gavilanes Decl. (ROA #15), ¶¶ 5-8.] In pertinent part, the arbitration agreement provides: ARTICLE 1: It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contractual agreement were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered, and will be determined by submission to arbitration as provided by California law, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contractual agreement, by entering into it, are giving up their constitutional right to have such a dispute decided in a court of law before a jury, and instead are accepting the use of arbitration.